

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

None

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to dissolve and reform Massachusetts Commission on Judicial Conduct.

PETITION OF:

NAME:

KC Linardon

DISTRICT/ADDRESS:

DATE ADDED:

1/23/2025

HOUSE No.

[Pin Slip]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to dissolve and reform Massachusetts Commission on Judicial Conduct.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Initiative Petition to Dissolve and Reform the Massachusetts Commission on Judicial
2 Conduct (CJC) state agency. The requirement for the new formation of the Commission must
3 include different diversities, minorities, non-economic and disadvantaged communities. The
4 members will be selected only from public population and appointed by residents of
5 Massachusetts to serve maximum of one year term only. There will be no inclusion of members
6 of the Judicial (lawyers, Judges or Governor Chosen as the commission’s members) in the
7 reformed CJC agency due to conflict of interest. There will be no reappointment of the same
8 members after the one term ends. Be it enacted by the People and by their authority:

9 The reform must include the public discloser of member’s general information since they
10 are serving the public, we have the right to know who they are.

11 It is said that “Justice is blind” but in Massachusetts Judicial system, justice is not blind
12 at all.

Lincoln's famous phrase "government of the people, by the people, for the people" but the Massachusetts Commission on Judicial Conduct (CJC) is "government of the government, by the government, for the government against the people of Massachusetts."

The CJC is not there to protect the public interest that they are supposed to be serving even though, they are state funded agency through public taxpayer's money from residents of Massachusetts. The CJC are only there to protect bad judges who shouldn't be on the judicial bench.

The agency shouldn't be called "Massachusetts Commission on Judicial Conduct" rather they should be "Massachusetts Commission on Judicial Misconduct Protection for Bad Judges."

The membership of the Commission consists of nine people, each appointed for a six-year term: three judges appointed by the Supreme Judicial Court, three lawyers appointed by the Chief Justice of the Trial Court, and three non-lawyers appointed by the Governor. The entire justice system grants itself immunity from public prosecution. The judges review judges. Each and every level reviews itself and grants itself immunity from public prosecution. Any organization without any independent, impartial, non-partisan oversight will invariably become corrupt and began to serve its own interests and purposes but not the interest and purpose for which it was intended. The entire Justice System in Massachusetts simply does not have any checks and balances on its exercise of power.

The legislature created the Massachusetts Commission on Judicial Conduct (Commission) in 1978 and entrusted it with the important mission of enforcing standards of judicial conduct for Massachusetts state judges, promoting public confidence in the judiciary,

34 and preserving the integrity of the judicial process and yet the agency has failed to maintain the
35 public's confidence in the integrity of the judicial system.

36 The Massachusetts Commission on Judicial Conduct (CJC) is the state agency
37 responsible for investigating complaints alleging that a state court judge has engaged in judicial
38 misconduct or has a disability preventing him or her from properly performing judicial duties.
39 The CJC is also responsible for pursuing, when it is appropriate, remedial action or discipline
40 against state court judges.

41 The CJC does not care to investigate complaints that come from the public individuals on
42 judges violating the Massachusetts Code of Judicial Conduct (SJC Rule 3:09) and for engaging
43 in judicial misconduct that will bring the judicial office into disrepute, that is prejudicial to the
44 administration of justice, and that is unbecoming of a judicial officer, in violation of M.G.L. c.
45 211C, sec. 2(5)(d).

46 The CJC said that their role is to (1) Preserve both judicial independence and public
47 accountability, (2) Provide a fair and reasonable process to address judicial misconduct and
48 disability and (3) Maintain the public's confidence in the integrity of the judicial system. Yet
49 they have failed the public trust in all of the three roles, and we might as well rename it as "The
50 office that protects bad Judges."

51 The agency does not care to investigate complaints made by public individuals, regular
52 people, unless the complaint is initiated by a judge, court staff and another government agency or
53 sometimes from lawyers. If you are an individual, regular person, you are guaranteed that your
54 complaint will be dismissed one way or another whether it is at the beginning or in the middle.

55 The Commission reports that 637 complaints were filed with the Commission in 2021,
56 and out of those complaints, sixty-one were docketed for investigation or Commission
57 Screening. Massachusetts Commission on Judicial Conduct publishes Annual Report covering
58 each year filed complaints on Judges that they received and some are over 600 complaints per
59 year and when you look at each yearly report, (see the actual amount of complaints that they
60 dismissed in their annual report) [https://www.mass.gov/news/massachusetts-commission-on-](https://www.mass.gov/news/massachusetts-commission-on-judicial-conduct-publishes-annual-report-covering-2021-activities)
61 [judicial-conduct-publishes-annual-report-covering-2021-activities](https://www.mass.gov/news/massachusetts-commission-on-judicial-conduct-publishes-annual-report-covering-2021-activities) and
62 <https://www.mass.gov/doc/cjc-annual-report-2021> pages 11-17) from the public individuals, the
63 report speaks for itself why the people of Massachusetts need to Defund and Reform the
64 Massachusetts Commission on Judicial Conduct (CJC) state agency.

65 Complaints filed on judges by litigants are shared with the judge in the Complaint, which
66 makes it even harder for a litigant to seek justice, as the judges becomes more biased and are
67 constantly retaliating against individuals filing the complaints. Those judges will even continue
68 by joining together as in ganging to attack, target present or your future case in the court and
69 abuse their judicial powers by singling you out, defaming, slandering and libeling you and
70 permanently in revenge blacklist you through Ex-parte internal communications to all their
71 fellow judges both in lower and higher court judicial systems. They will make it impossible for
72 complainants to never have a chance of due process rights, right to be heard, fair justice in our
73 court for as long as those judges are on the bench which is a lifetime. We have proof that judges
74 have been notified of complaints filed against them. These complaints are supposed to be
75 confidential, but this confidentiality only operates one-way as the litigant is prohibited from
76 sharing their complaint publicly, yet the CJC shares the complaint with the judge.

77 The Reformed Massachusetts Commission on Judicial Conduct (CJC) state agency
78 should be able to conduct open, transparent, and public hearings reviewing of judicial
79 misconduct complaints.

80 No one should be above the law.